

25SCTV34367 25SCTV34367

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BACKGROUND

This case is a habitability matter. Plaintiff Shelly Hart is a tenant at a rental property located in Woodland Hills, California. Plaintiff alleges the property is an unlawful dwelling. Accordingly, she has attempted to vacate the property but asserts she has been unable to do so. As a result, Plaintiff alleges she has faced unwanted harassment from several listed defendants. Plaintiff also alleges several defects with her unit and the property in general, and that the defects have not yet been repaired.

On January 22, 2026, Plaintiff filed her first amended complaint ("FAC") against 25 named defendants (collectively referred to as "Defendants"). The complaint alleges 15 causes of action stemming from the facts alleged above.

On June 23, 2026, Plaintiff filed a Motion for Preliminary Injunction ("Motion") seeking an injunction prohibiting any construction at the subject premises without notice to Plaintiff and the opportunity for Plaintiff and Plaintiff's experts to be present. .

On June 30, 2026, Defendant Zamanifar filed an opposition.

On July 9, 2026, Plaintiff filed a reply.

TENTATIVE RULING

Plaintiff's Motion for
Preliminary Injunction is DENIED.

LEGAL STANDARD

"An injunction is a writ
or order requiring a person to refrain from a particular act. It may be granted
by the court in which the action is brought, or by a judge thereof; and when
granted by a judge, it may be enforced as an order of the court." (Code Civ.
Proc., § 525.)

"In determining whether to
issue a preliminary injunction, the trial court considers two related factors:
(1) the likelihood that the plaintiff will prevail on the merits of its case at
trial, and (2) the interim harm that the plaintiff is likely to sustain if the
injunction is denied as compared to the harm that the defendant is likely to
suffer if the court grants a preliminary injunction." (14859 Moorpark
Homeowner's Association v. VRT Corp. (1998) 63 Cal.App.4th 1396,
1402.) The party seeking the injunction bears the burden
of demonstrating both a likelihood of success on the merits and the
occurrence of irreparable harm. (See
Savage v. Trammell Crow Co. (1990) 223 Cal.App.3d 1562, 1571
[citing Cohen v. Board of Supervisors (1985) 40 Cal.3d 277, 286].) Once
both factors are demonstrated, "The trial court's determination must be guided
by a 'mix' of the potential-merit and interim-harm factors; the greater the
plaintiff's showing on one, the less must be shown on the other to support an
injunction." (Butt v. State of California (1992) 4 Cal.4th 668, 678
(Butt).) "Generally, weighing these factors lies within the broad
discretion of the superior court." (County of Kern v. T.C.E.F., Inc. (2016)
246 Cal.App.4th 301, 315.)

DISCUSSION

After evaluating all
filings, the Court will not grant a preliminary injunction.

Plaintiff seeks an
injunction to prevent any repairs from being made to her unit unless she and

her experts are present and can take photos. In their papers, the parties do not spend much time arguing Plaintiff's likelihood of success on the merits. However, as demonstrated below, this portion of the analysis is irrelevant because Plaintiff is unable to show irreparable harm.

I.

Irreparable

Harm

The Court holds that there is no showing of irreparable harm. Accordingly, the Court cannot grant a preliminary injunction.

"Irreparable harm" means that the defendant's act constitutes an actual or threatened injury to the personal or property rights of the plaintiff that cannot be compensated by a damages award. (See *Brownfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410.)

Here, Plaintiff contends she will suffer irreparable harm if repairs are made to her apartment without her experts present and without being able to take photos. She asserts that the owner-defendants will make the relevant repairs once she moves out, hide their defective/unpermitted work, and then deceive the jury that the unit was renovated "per code". (See Motion, pp. 6:24-26, 7:1-2.) However, the Court finds flaws with Plaintiff's argument.

First, Plaintiff seeks this injunction so her experts can view the unit and take photos before any repairs take place. (See Motion, p. 6:24.) However, Plaintiff presently has access to the apartment and has had access throughout this lawsuit, so her experts have had and continue to have the opportunity to take photos of any alleged defects. Even if the owner-defendants make repairs after Plaintiff moves out, Plaintiff will have evidence of the defects that permeated the unit during her time there. Second, when Plaintiff vacates the unit, she will no longer have any possessory interest in the unit. Therefore, Plaintiff cannot claim irreparable harm over something she has no possessory interest in. (See *Brownfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410.) In short, there is no showing of irreparable harm which justifies granting a

preliminary injunction. Without irreparable harm, the Court cannot grant a preliminary injunction even if Plaintiff shows a likelihood of prevailing on the merits because both factors must be present. (See *Savage v. Trammell Crow Co.* (1990) 223 Cal.App.3d 1562, 1571 [citing *Cohen v. Board of Supervisors* (1985) 40 Cal.3d 277, 286].)

CONCLUSION₂

For the foregoing reasons, Plaintiff's Motion for Preliminary Injunction is DENIED.